

**ATTACHMENT 4 - Redacted J&A -
70Z03826QH0000011 - HC-130J Avionics Repair Services**

In compliance with Federal Acquisition Regulation (FAR) 12.102(b) (FAR Class Deviation 25-21), the written justification and approval, in accordance with FAR 6.104-1 (FAR Class Deviation 25-11), is provided as follows:

1. Agency and Contracting Activity.

The Department of Homeland Security, United States Coast Guard (USCG), Aviation Logistics Center (ALC), Long Range Surveillance (LRS) Product Line (PL), proposes to enter into a contract on a basis other than full and open competition.

2. Nature and/or Description of the Action being Approved.

(a) Nature of the action: The USCG, ALC, LRS PL requests approval to solicit and award, on a sole source basis, a Firm-Fixed Price contract for the procurement of repair services on avionic components and accessories used on the HC-130J aircraft.

(b) Name and address of the contractor:
Northrop Grumman Systems Corporation
101 Industrial Park BLVD
Warner Robins, GA 31088-7409
Cage Code: 1LTU5

(c) Type of action: Firm-Fixed Price (FFP), Indefinite-Delivery, Requirements Type Contract.

(d) Estimated total value (including options): 



(e) Type of funding: Operation and Support (O&S) funds.

(f) Year of funding: Fiscal Year 2026

(g) Solicitation number: 70Z03826QH0000011

(h) Background information about the requirement: The USCG, ALC, LRS PL supports the HC-130J aircraft by providing logistics, inventory management and sustainment support for USCG aviation assets utilized by Air Stations geographically located in and outside the Continental United States. As part of this responsibility, the LRS PL has a requirement for sustainment of numerous components used on the aircraft, which includes avionic components and accessories. The services under this justification were previously satisfied through the award of individual purchase orders to Northrop Grumman Systems Corporation (NG).

3. Description of Supplies/Services.

This requirement is for the services to repair avionic components and accessories used on the HC-130J aircraft. The services provided under this contract will include teardown, testing evaluation, and repair for avionic components and accessories that are turned in for repair by the air stations and issued from ALC as needed to maintain an inventory of airworthy, Ready-for-Issue (RFI) spares.

4. Identification of Statutory Authority Permitting Other Than Full and Open Competition.

The statutory authority permitting other than full and open competition is 41 U.S.C. § 1901 as implemented in FAR 12.102 (FAR Class Deviation 25-21), “Restricting Competition”.

5. Identification of Exception to the Buy American Act.

The Buy American Act does not apply to this requirement for repair services.

6. Demonstration that the Proposed Contractor’s Unique Qualifications or the Nature of the Acquisition Require Use of the Authority Cited.

(a) Rationale for using the authority cited in section 4 of the J&A;

NG is the Original Equipment Manufacturer (OEM) for the avionic components and accessories used on the HC-130J aircraft. All specifications, manufacturing drawings, test equipment, and tooling required to perform repair services on these components are proprietary to NG. The USCG did not purchase the rights to the proprietary data required to foster a competitive environment as part of any original provisioning for use on the HC-130J aircraft. To maintain integrity of the system, ensure compatibility of the replacement components and safe operation of the aircraft, these components must be repaired by the OEM, NG.

(b) Details covering what events led to the situation requiring use of other than full and open competition procedures including whether any portion of the work can be segregated to allow for competition;

LRS Engineering Officers have determined that interested parties must have continued access to OEM manuals, specifications, and data in order to perform repair services to the avionic components and accessories in this requirement. The USCG is prohibited from disclosing any technical documents in their possession as these were developed at private expense by NG and are proprietary. NG has declined to provide proprietary rights to the Government and has stated that they do not intend on selling the rights for repair or manufacture of these components through correspondence received on official company letterhead dated 10/06/2025, received by the USCG on 10/07/2025. For these reasons, other than full and open competition procedures are necessary for this requirement, and no portion of the services can be segregated to allow for competition.

(c) Summarize alternatives considered and why they will not work;

The OEM, NG, is the only authorized repair facility. NG is the only source with the proprietary data to perform the repairs; the only source with the technical expertise to interpret data; and the only source with the ability to solve technical problems that arise. NG’s proprietary data and technical expertise are vital for operational readiness of the system. There are no alternative sources; therefore, no alternative sources may be considered.

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- (d) Impact to the mission that would result if the J&A is not approved and, consequently, the product or service not provided.

Failure to approve this sole source Justification for Other than Full and Open Competition will jeopardize the performance of the USCG's mission due to grounding of aircraft as a result of insufficient stock being available as these avionic components and accessories are required for the HC-130J aircraft.

- (e) *(Section is required to be completed when the J&A includes the exception listed under FAR 25.103(b)(2) or FAR 25.202(a)(2))* Rationale for use of the nonavailability exception to the Buy American statute, including detailed information explaining why the particular articles, materials, or supplies of the class or kind to be acquired, either as end items or components, are not mined, produced, or manufactured in the United States in sufficient and reasonably available commercial quantities and of a satisfactory quality.

The exceptions under FAR 25.103(b)(2) or FAR 25.202(a)(2) do not apply to this requirement.

7. Description of Efforts Made to Ensure that Offers are Solicited from as Many Potential Sources as is Practicable.

- (a) If an entry was made in Acquisition Planning Forecast System (APFS), provide the publication date.

Forecast Record F2025071136 was originally published on 09/30/2025 and the record was revised and re-published on 12/10/2025.

- (b) If an announcement has already been made in SAM.gov, provide the publication date.

Sources Sought Notice 70Z03826IH0000001 was posted to SAM.gov on 09/29/2025 and closed on 10/09/2025.

- (c) If an announcement is being planned for posting in SAM.gov, provide the estimated publication date.

It is anticipated that a solicitation will be posted 02/16/2026. Any capability statement or quote received in response to the combined synopsis/solicitation will be considered prior to award.

- (d) If an announcement will not be published, identify the applicable exception under FAR Part 5.

The exceptions under FAR 5.202 do not apply to this requirement.

8. Determination by the Contracting Officer that the Anticipated Cost to the Government will be Fair and Reasonable.

The Contracting Officer anticipates the prices for this procurement will be fair and reasonable IAW FAR 12.204(a) (FAR Class Deviation 25-21). This will be based on comparison with similar items in a related industry and comparison to the IGCE.

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9. Description of Market Research.

- (a) Describe the market research techniques used, results, date(s) when the market research was conducted, and how the contracting officer used it to determine price reasonableness.

Market research was conducted IAW FAR Part 10 (FAR Class Deviation 25-06) from July 2025 through December 2025. Market research indicates that the repair services on the components identified in this requirement are not listed on a General Services Administration (GSA) contract or available through GSA Advantage. Market research also consisted of querying the Acquisition history, Internet Search, Inventory Locator System (ILS), Catalog and product literature, DHS-Wide and Multi-Component Contract Vehicles, Excess from Other Agencies, AbilityOne, and Contracting Opportunities. These searches revealed no alternate supply sources. The OEM's repair facility is the only approved source to provide the required repair services. These repair services for the HC-130J aircraft are commercial in nature and are prevalent in private aviation and commercial aviation. All terms and conditions are not expected to differ from customary terms and conditions in the marketplace or standard Government practices.

Sources sought notice 70Z03826IH0000001 was posted to SAM.gov on 09/29/2025 and closed on 10/09/2025. The sources sought notice received two (2) timely responses. Only one (1) of the responses received was determined capable. The one capable response was from the OEM, NG. NG provided their capability statement on 10/07/2025. NG confirmed they are the OEM, and they do not have any other authorized repair facilities. The other response provided was incomplete and could not provide the technical support needed for this requirement due to the proprietary data.

- (b) *(Section is required to be completed when the J&A includes the exception listed under FAR 25.103(b)(2) or FAR 25.202(a)(2)).* Describe the market research results that support the determination that the items are nonavailable.

The exceptions under FAR 25.103(b)(2) or FAR 25.202(a)(2) do not apply to this requirement.

- (c) If market research was not conducted, state why.

Not applicable. Market research was conducted IAW FAR Part 10 from July 2025 through December 2025.

- (d) If patents, copyrights, and/or intellectual property are applicable to the acquisition, describe the circumstances for acquiring a patented or copyrighted product on the representation of the intellectual property holder that has not been licensed for resale and consult with the Coast Guard IP attorney.

This requirement does not have patents, copyrights, and/or intellectual property.

10. Any Other Facts Supporting the Use of Other Than Full and Open Competition.

- (a) An explanation why technical data packages, specifications, statement of work, or purchase descriptions are not suitable for full and open competition.

The repair services to be procured under this acquisition are highly specialized in nature and developed by a non-Government activity. The technical data required to procure the repair services from sources other than the OEM is not available. NG is the only authorized repair facility for the required repair services on the avionic components and accessories used on the HC-130J aircraft. NG has not shown an

interest in selling or providing the proprietary data rights to the Government or any other entity. It is not economically feasible for the USCG to purchase these proprietary rights.

(b) Discuss why your requirement cannot be modified to enhance competition.

The repair services to be procured are complex and must meet critical operational and reliability requirements, the achievement of which requires unique production techniques and extensive and/or sophisticated testing. The Government has not yet acquired or developed the technical data. If another potential source emerges, and the USCG is able to obtain the required technical data, the USCG will assess whether competition for any future requirement is feasible.

(c) For a proposed contract subject to the restrictions of FAR 6.103-1 (FAR Class Deviation 25-11) for follow-on acquisitions as described in 6.103-1(c)(2)(i) (FAR Class Deviation 25-11), provide an estimate of the cost to the Government that would be duplicated and detailed information on how the estimate was derived.

This requirement is not subject to the restrictions of FAR 6.103-1 as described in FAR 6.103-1(c)(2)(i).

(d) For a proposed contract subject to the restrictions of FAR 6.103-2(c) (FAR Class Deviation 25-11) or HSAR 3006.103-2(c)(70) (HSAR Class Deviation 25-01) and where FAR 6.103-2 (FAR Class Deviation 25-11) is cited as the authority, describe the exceptional circumstances allowing for an award for a period of performance in excess of the one-year limitation (applicable to all federal agencies) or the DHS-specific statutory 150-day limitation.

This requirement is not subject to the restrictions of FAR 6.103-2(c) or Homeland Security Acquisition Regulation (HSAR) 3006.103-2(c)(70).

11. A Listing of the Sources, if Any, that Expressed, in Writing, an Interest in the Acquisition.

A sources sought notice was issued in Contract Opportunities on SAM.gov on 09/29/2025 and closed on 10/09/2025 requesting that parties expressed their interest in writing to the Contracting Officer. Two (2) timely responses were received during the duration of the Sources Sought Notice, one being from NG. NG confirmed they are the OEM, and they do not have any other authorized repair facilities.

12. A Statement of the Actions, if Any, the Agency May Take to Remove or Overcome Any Barriers to Competition Before Any Subsequent Acquisition for Supplies or Services Required.

(a) Will the Government revise overly technical specifications, acquire data rights, etc.?

The USCG does not possess the technical data required to foster full and open competition for repair services on the avionic components and accessories covered under this justification and approval. The USCG will continuously conduct market research to ensure that companies interested in doing business with the USCG are given every opportunity to compete for future USCG requirements. To increase competition, program members conduct internet database research and ensure procurements are advertised in SAM.gov. If another potential source emerges, and the USCG is able to obtain the required technical data, the USCG will assess whether competition for any future requirements is feasible.

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- (b) When a J&A is issued for the purposes of acquiring goods or services while a competitive procurement is being conducted, the justification should include a detailed timeline for completion of the competitive procurement. The period of performance for the sole source action should fairly balance the time needed to complete the competitive procurement. The focus should be on minimizing the need for additional sole source awards.

Not applicable to this requirement.

13. Contracting Officer's Certification.

I certify that the data supporting the recommended use of other than full and open competition is accurate and complete to the best of my knowledge and belief.



14. Technical/Requirements Personnel Certification.

I certify that this requirement meets the Government's minimum need and that the supporting data, which forms a basis for the justification, is accurate and complete.



RECOMMENDED FOR APPROVAL



APPROVAL

